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Report back on the Fast-track Approvals Bill coming this Friday: what to look for

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The Environment Select Committee is expected to report back to the House this Friday afternoon on the Fast-track Approvals Bill. The Committee received some 27,000 submissions and heard from over 1,000 submitters, most against.

"If the government is determined to proceed in spite of that overwhelming opposition, there are 3 key fixes needed to make the Bill less bad," said EDS CEO Gary Taylor.

"The first and most important point to look for is whether the decision-making criteria have been changed. The purpose clause needs widening to include consideration of environmental impacts rather than having development as the overriding concern.

"That will require amendments to clause 3, to clause 1 of Schedule 3, and to clause 32 of Schedule 4. In a meeting with the Prime Minister, EDS provided detailed drafting that would achieve this. For example, a more suitable purpose would look like this:

The purpose of this Act is to provide a fast-track decision-making process for eligible projects having significant public benefit while continuing to protect the environment.

"The second key fix needed is to the legal standing provisions in clauses 19(1) and 20(3). At present there's a very limited range of individuals and entities that are entitled to provide comment on applications. That needs to change to allow those affected, and environmental non-government organisations acting in the public interest, an opportunity to provide feedback. It makes no sense to give offshore companies a privileged track while cutting New Zealanders out of the process.

"The third matter to pay close attention to is the way the public has been locked out of having a say on the 149 Schedule 2 projects, many of which include 'zombie' developments already declined because of adverse environmental effects. It will be interesting to see what, if anything, the Committee has to say about the constitutionally dodgy way the Schedule is to be included in the Bill.

"If the first 2 fixes above are not made, it means that when a Scheduled applicant applies to the EPA for consent, it will almost certainly be approved because of the biased decision-making criteria and the absence of contestable submissions and expert evidence. That, unfortunately, looks like the most likely outcome.

"Overall, while faster and more efficient decision-making may be a good thing, allowing bad projects to cause environmental harm is certainly not. As presently drafted, the Bill is so flawed that without these fundamental fixes we will be looking down the barrel of serious damage to our natural world. That cannot be allowed to happen.

"The changes we have proposed are small but would make a big difference.

"Finally, Minister Bishop has recently quoted me ([see here](#)) ostensibly in support of aspects of his Bill. His quotes were highly selective and created a quite misleading impression. The full transcript of the relevant parts of the Nine to Noon interview is below. That was very naughty of the Minister," said Mr Taylor.

KATHRYN RYAN: So, what's your view of what's on it? You've said some look good, some, I mean obviously you come from an environmental perspective, some you are not pleased with. But overall, what do you make of them, given the stated objective of the Government?

GARY TAYLOR: Yeah, and while I come from an environmental perspective, I'm also a Kiwi interested in economic welfare of our nation, so all of the, a lot of the infrastructure projects look good to go to me, subject to environmental assessment, and I'll come back to that if I can later.

So a lot of the renewable projects, a lot of the housing projects, although there are obviously important questions about impacts from them, location and so on, a lot of them are all good to go.

The areas that are of concern is probably, I don't know, about 10 percent, and they include the Hananui aquaculture project off Stewart Island, which is going to impact on the Hoiho, the

Yellow-eyed penguin (bird of the year), which is in strife and heading towards extinction if we're not careful. The Waimate waste to energy plant which is a very controversial thing in terms of air and CO2 emissions. A lot of coal mines, coking coal and thermal coal, although not as many as we had thought. Te Kuha, for instance, is not on that list which is a good thing. Trans-Tasman Resources, which seems to be in immediate conflict with the Government's expressed intentions to build offshore wind off Taranaki, and a number of mining projects as well. Waitaha, the run of river hydro scheme on the West Coast, you'd have to say why on earth aren't we building solar over there instead of damming one of our pristine rivers again.

So, you know, there are those sorts of projects that one is concerned about, and some of them as you've inferred, are so-called zombi projects that have risen from the dead. They've been through a process, they've been declined, and they've come back for another try.

KATHRYN RYAN: Yeah, solar on the West Coast. You can perhaps see some of the arguments for a different kind of, or resilience approach there. This is, I guess, what people want to have an opportunity to have a say on. The question is, under this legislation, what will happen now? Do you really think we're going to see 149 different panels for starters? What do you expect to happen from here?

GARY TAYLOR: Well, I'd expect there to be, I don't know, 20 maybe 30 panels if we really stretch up over the next 12 months. And so that's that same number of projects. Some of them will be much bigger than others. I mean, this list is very hodge podge, very big, projects like the Bledisloe wharf extension, and tiny little ones as well, local projects or at least regionally significant projects. And I mean, the problem will be that there's still two key concerns about this overall legislation:

One is that the environmental criteria have been de-prioritised and the select committee really needs fix that. We need to get some proper balance between development and environmental objectives into the law.

And the second problem is legal standing. At the moment, no communities, no environmental groups are going to be able to have a say and be listened to, and that's gotta change. I mean, you can't have companies, some of whom are offshore companies, coming in with a privilege track for consent, and cut out local communities from having a say. That's not good either. So, we really need to fix the overarching legislative framework in order to get a fair and workable process.

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